

(34)

Tentative Ruling

Re: ***Del Rey Packing v. Del Rey Community Services District***
Superior Court Case No. 25CECG05189

Hearing Date: May 13, 2026 (Dept. 501)

Motion: Defendant's Demurrer to the Complaint

Tentative Ruling:

To find the demurrer moot and take the matter off calendar. (Code Civ. Proc., § 472, subd. (a).)

Explanation:

“It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.” (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884, citations omitted.) Accordingly, the filing of a first amended complaint renders a demurrer to the original complaint moot. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.)

Plaintiff filed the First Amended Complaint on April 30, 2026, at the time when the opposition to defendant's demurrer was due. The First Amended Complaint is thus timely (Code Civ. Proc., §§ 472, subd. (a) and 1005, subd. (b)), and renders the demurrer moot. Accordingly, the hearing is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Aguilar Galeana v. American Honda Motor Co., Inc.***
Superior Court Case No. 24CECG04997

Hearing Date: May 13, 2026 (Dept. 501)

Motion: by Defendant to Reopen Discovery

Tentative Ruling:

To deny without prejudice.

Explanation:

Any other party may take the deposition of any person designated as an expert by the opposing party. (Code Civ. Proc., § 2034.410.) Expert depositions may be taken as late as 15 days before trial. (Code Civ. Proc., § 2024.030.) Parties may waive this discovery cut-off by stipulation. (Code Civ. Proc., § 2016.030.) Service of a proper deposition notice and tender of the expert witness fee “is effective to require the party employing or retaining the expert to produce the expert for the deposition.” (Code Civ. Proc., § 2034.460, subd. (a).) Where a party unreasonably fails to make an expert available for deposition, the court shall exclude the expert's opinion from evidence. (Code Civ. Proc., § 2034.300.) Where an expert has not been made available for deposition and a party wishes to object to that witness's testimony at trial, a formal objection should be made. (Code Civ. Proc., § 2034.300.) This can appropriately be addressed in a motion in limine. (*Boston v. Penny Lane Centers, Inc.* (2009) 170 Cal.App.4th 936, 950; *Cottini v. Enloe Medical Center* (2014) 226 Cal.App.4th 401, 412-415.)

Here, defendant served a demand for expert exchange on March 17, 2026. (Sadanaga Decl., ¶ 2.) On April 1, 2026, plaintiff served his expert witness designation identifying six expert witnesses. (Id. at ¶ 3 and Exh. 1.) On April 2, 2026, defendant noticed the depositions for each of the designated experts. (Id. at ¶ 4 and Exhs. 2-7.) On April 8, 2026, plaintiff served objections on behalf of each expert based on unavailability. (Id. at ¶ 5 and Exhs. 8-13.) Following this, defense counsel made attempts to have plaintiff provide alternative dates for the expert depositions. (Id. at ¶ 6 and Exh. 14.) As of the filing of the instant motion on April 21, 2026, no response had been received. (Id. at ¶ 7.)

This motion is brought pursuant to Code of Civil Procedure section 2024.050. That section provides for a motion to “complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.” (Code Civ. Proc., § 2024.050, subd. (a).) Such a motion must be accompanied by a meet and confer declaration that satisfies Code of Civil Procedure section 2016.040. (Ibid.) Code of Civil Procedure section 2016.040 requires

the meet and confer efforts to be in person, by telephone, or by videoconference. (Code Civ. Proc., § 2016.040, subd. (a).) Here, the email correspondence is insufficient. (Sadanaga Decl., ¶¶ 6-7.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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